

		The court notes that it “has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown.” (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) CASE MANAGEMENT CONFERENCE CURRENTLY SCHEDULED FOR 09/21/2026 IS CONTINUED TO 12/07/2026 at 1:30 p.m. Clerk to give notice.
115	Torossian v. Jalali-Bidgoli, 2025-01493940	MOTION TO SET ASIDE/VACATE DISMISSAL – GRANTED WITH CONDITIONS Plaintiff Jack Torossian, proceeding in pro per, moves pursuant to Code of Civil Procedure section 473(b) for an order vacating the dismissal entered on 04/27/2026. The dismissal was entered when Plaintiff failed to appear at a hearing on an OSC to dismiss for failure to appear at a previous hearing. Plaintiff argues that the “dismissal resulted from mistake, inadvertence, and excusable neglect arising from overlapping and continued litigation proceedings, calendaring confusion caused by the Court’s continuance of operative discovery matters, and an incomplete procedural picture concerning the active prosecution status of this matter at the time dismissal was entered.” Defendant Sharmin Jalali Bidgoli, proceeding in pro per, opposes the motion, arguing that a “litigant who is ordered to appear and explain why his case should not be dismissed, and who then fails to appear, has not made an excusable mistake.” “The law favors resolution of cases on their merits, and because it does, any doubts about whether Code of Civil Procedure section 473 relief should be granted must be resolved in favor of the party seeking relief from default. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial

	on the merits.” (Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 685; Lasalle v. Vogel (2019) 36 Cal.App.5th 127, 134.) Here, Plaintiff was diligent in requesting relief from the Court immediately after the dismissal was entered. Given the strong public policy in favor of hearing cases on their merits, the Court will GRANT the request to vacate the dismissal. However, the Court has the ability to condition its order. First, the Court will impose a monetary sanction against Plaintiff Jack Torossian in the amount of \$100, payable to the Court within 15 days, for failing to appear at a properly noticed case management conference and failing to appear at a properly notice hearing on an order to show cause for failure to appear. Second, the informal discovery conference and order to show cause which were removed from the Court’s calendar upon dismissal of the case are reset for 09/30/2026 at 9:00 a.m. in Dept. CM02. The requirements of the Court’s 04/14/2026 minute order are reinstated with respect to a joint letter brief, in person appearances, etc. Moving forward, Plaintiff must be diligent in keeping abreast of the case’s schedule and seek clarification when needed. Plaintiff is also encouraged to retain counsel. Plaintiff is not justified attending other matters (such as, scheduled coursework at Cypress College). Plaintiff initiated this lawsuit and must actively participate in it, including responding to discovery and attending hearings. Any scheduling conflict that Plaintiff may experience must be addressed at a hearing or on a noticed motion. Plaintiff’s failure to participate in discovery and appear for hearings will not be tolerated and Defendant and the Court may move for terminating sanctions should such conduct persist following this order. The Court further notes that Plaintiff must serve all documents filed pursuant to code. Service must be completed by an individual who is 18 years of age and not a party to this action. In serving this motion, Plaintiff effectuated service, which is not proper under
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		the code. (See POS-040; Code Civ. Proc., §§ 1011, 1013, 1013a.) Plaintiff to give notice.
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